

24STCV23279 24STCV23279

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Case Number: 24STCV23279 Hearing Date: July 7, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion to Set

Aside/Vacate Dismissal (CCP 473)

The Motion to Set Aside/Vacate Dismissal filed by Plaintiffs
is granted.

BACKGROUND

Plaintiffs Patricia Jordan and Fayette Eadie (collectively
"Plaintiffs") filed this action against Defendant Howard Griffiths
(Griffiths) and Doe defendants, alleging that Griffiths negligently operated a
motor vehicle and caused a collision on May 11, 2022, at Victoria Avenue and
39th Street in Los Angeles, resulting in personal injury and property damage.

The sole cause of action is Motor Vehicle negligence.

Plaintiffs filed the Complaint on September 10, 2024, and
served Griffiths on March 6, 2025. Default was entered against Griffiths on
September 3, 2025. On December 4, 2025, after no party appeared at an Order to
Show Cause re: Failure to Prosecute Default Judgment, the Court dismissed the
action without prejudice.

Plaintiffs filed this Motion to Set Aside/Vacate Dismissal. Griffiths
did not file an Opposition.

LEGAL STANDARD

A court has discretion to grant a party relief from a

judgment, order, or other proceeding taken against that party through the party's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

In addition to discretionary relief, Code of Civil Procedure section 473, subdivision (b), provides that when an application for relief is made no more than six months after entry of default and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, the court shall set aside a default or resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) "[I]f the prerequisites for the application of the mandatory provision of section 473, subdivision (b) exist, the trial court does not have discretion to refuse relief." (Leader v. Health Industries of America (2001) 89 Cal.App.4th 603, 612 (Leader).)

ANALYSIS

Plaintiffs seek mandatory relief based on their counsel's affidavit of fault. Counsel declares that he failed to appear at the December 4, 2025, Order to Show Cause because the hearing did not appear in his view of the Los Angeles Superior Court attorney portal, and that his nonappearance caused the dismissal. (Bowman Decl. ¶ 3.)

The application is timely. Section 473, subdivision (b) requires that an application for relief be made no more than six months after the dismissal. (Code Civ. Proc., § 473, subd. (b).) The Court dismissed the action on December 4, 2025, and Plaintiffs filed this motion on June 4, 2026, within six months.

By its terms, the mandatory provision reaches any dismissal caused by attorney neglect. The courts have narrowed that language, however, to keep the provision from serving as a "perfect escape hatch" for undoing civil dismissals generally. (Huens v. Tatum (1997) 52 Cal.App.4th 259, 263.) The provision reaches only those dismissals that are the procedural equivalent

of a default, meaning dismissals entered through a failure to oppose a dismissal motion. (*Peltier v. McCloud River R.R. Co.* (1995) 34 Cal.App.4th 1809, 1817 (*Peltier*).) It applies, therefore, where attorney neglect causes a failure to oppose a dismissal, such as a failure to appear at the hearing. (*Gotschall v. Daley* (2002) 96 Cal.App.4th 479, 485 (*Gotschall*).)

A dismissal connected to a failure to prosecute can fall outside the mandatory provision. In *Peltier*, the court held the provision did not reach a discretionary dismissal for failure to bring the case to trial within three years, because that dismissal required the court to weigh the reasons for the delay. (*Peltier*, *supra*, 34 Cal.App.4th at pp. 1817-1818.) A plaintiff who has had a day in court on such a motion is not entitled to a second bite through a later section 473 motion resting on the same facts of delay. (*Tustin Plaza Partnership v. Wehage* (1994) 27 Cal.App.4th 1557, 1566.)

Those concerns are absent here. The Court did not dismiss this action after weighing and rejecting a showing of diligence. It dismissed the action because no one appeared at the Order to Show Cause. Plaintiffs never had the day in court that these authorities protect, and they do not seek relief from a considered ruling on the diligence of their prosecution. They seek relief from a nonappearance. A dismissal entered for failure to appear is the procedural equivalent of a default, and it falls within the mandatory provision. (*Gotschall*, *supra*, 96 Cal.App.4th at p. 485.)

The statutory requirements are met. The motion is accompanied by counsel's affidavit attesting that his own mistake and neglect caused the dismissal. (Bowman Decl. ¶ 3.) Whether that neglect was excusable is immaterial under the mandatory provision. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438 (*Martin Potts*).)

The record establishes the required causal link: the Court dismissed the action solely because counsel did not appear at the December 4, 2025, hearing, and counsel attests that his calendaring error caused the nonappearance. (Bowman Decl. ¶ 3.) The motion is unopposed, and nothing in the record supports a finding that the dismissal was not in fact caused by counsel's neglect. Accordingly, the Motion to Set Aside and Vacate is granted.

CONCLUSION

The Motion to Set Aside/Vacate Dismissal filed by Plaintiffs

is granted. The dismissal entered December 4, 2025, is vacated, and the action is restored to active status.